

within the trial court's discretion." (*Crocker Nat. Bank v. Emerald* (1990) 221 Cal.App.3d 852, 864.)

In the present case, the claim asserted in the Proposed Cross-Complaint is compulsory, as it is directly related to the claims alleged in the Complaint. (See, Proposed Cross-Complaint, attached as Ex. A to Proposed Order.) There is no evidence City acted in bad faith in delaying in filing its Cross-Complaint/this motion, or that Plaintiff will be prejudiced in any way, especially since the motion was filed less than three months after City filed its Answer, only minimal discovery has been conducted, and the Court has not even held a Case Management Conference (set for 11/19/26). Plaintiffs' argument that they will be required to defend against a property damage claim does not establish prejudice from the short delay in filing the Cross-Complaint.

Additionally, to the extent that Plaintiffs contend that City's claims may lack merit, the court typically does not consider the merits of the proposed amended pleading in deciding whether to grant leave to amend. "[T]he preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceeding." (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

Accordingly, the motion is granted, with City ordered to file the Cross-Complaint within 10 days.

8.

CASE #	CASE NAME	HEARING NAME
CVRI2506826	250 KLUG, LLC VS CLARIDGE PRODUCTS & EQUIPMENT, LLC	VERIFIED UNOPPOSED APPLICATION FOR AN ORDER TO APPEAR AS COUNSEL PRO HAC VICE (X3)

Tentative Ruling:

California Business and Professions Code §6125 provides that only active members of the California State Bar shall practice law in this state. California Rule of Court 9.40 allows state courts to give permission for out-of-state attorneys who are not licensed in California to appear on behalf of a party in a particular case as counsel *pro hac vice*. The court can only permit appearances that are made in association with an active California State Bar member who acts as the attorney of record for the party.

CRC 9.40 requires that an application to appear *pro hac vice* be made in writing and be verified. The application must state the applicant attorney's office and residence addresses; the courts to which the attorney has been admitted to practice and the dates of admission; that the attorney is a member in good standing in those courts; that the attorney is not currently suspended or disbarred in any court; the title of the court and cause in which the attorney has filed an application to appear *pro hac vice* in California within the preceding two years, the date of each application, and whether or not it was

granted; and the name, address, and telephone number of the active member of the State Bar of California who is attorney of record. No person is eligible to appear as counsel *pro hac vice* if they are a resident of California; are regularly employed in California; or are regularly engaged in substantial business, professional, or other activities in California.

The Application to appear *pro hac vice* must be served on the San Francisco office of the State Bar of California, which must also be paid a fee to defray administration expenses. Absent special circumstances, repeated appearances by any attorney under the Rule is a cause for denial of an application (*Walter E. Heller Western, Inc. vs. Superior Court (County of Los Angeles)* (1980) 111 Cal. App. 3d 706, 710). While appearing *pro hac vice*, an out-of-state attorney submits to the jurisdiction of state courts regarding state laws governing attorney conduct to the same extent as a California State Bar member. A trial court's inherent powers include the authority to revoke an attorney's *pro hac vice* status when that attorney has engaged in conduct that would be sufficient to disqualify a California attorney (*Sheller vs. Superior Court of Los Angeles County* (2008) 158 Cal. App. 4th 1697, 1716).

It appears to the Court that all requirements of CRC 9.40 have been met by each attorney above. Accordingly, all three applications are approved. The Court has signed the proposed orders and ordered them filed.